

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 26-11

THE INDIA CONNECTION LLC., *Complainant*

V.

CMA CGM (AMERICA) LLC; PRIDEL PRIVATE LIMITED; AND
EAGLE MARITIME OF AMERICA INC., *Respondents*

**JOINT MOTION TO VOLUNTARILY DISMISS PROCEEDING WITH PREJUDICE
AND FOR CONFIDENTIAL TREATMENT OF SETTLEMENT AGREEMENT**

Respondent, CMA CGM (America), LLC, together with Complainant, The India Connection LLC, (collectively, the “Parties”) submit this joint motion for voluntary dismissal of this proceeding pursuant to Rule 72(a)(3) and for the confidential treatment of the Settlement Agreement (the “Agreement”) filed under seal concurrently herewith. Per the terms of the Settlement Agreement, Co-Respondents Pridel Private Limited and Eagle Maritime of America, Inc. each consent to the filing of this joint motion.

CMA joins this motion specifically to underscore the confidentiality of the Settlement terms. Although the procedural vehicle presented differs from that contemplated by the Presiding Officer’s Order, since this is filed jointly, the Parties submit this Motion in a continued spirit of cooperation and to respond fully to the Order. The Parties remain equally invested in resolving this proceeding collaboratively, protecting the confidentiality regarding their respective business interests articulated within the Settlement Agreement, and ensuring compliance with the Presiding Officer’s directive. Accordingly, the Parties jointly seek voluntary dismissal and confidential

treatment of the submitted Settlement Agreement while preserving the cooperative approach that enabled resolution of this dispute.

I. INTRODUCTION

This proceeding began when The India Connection filed a verified complaint on July 31, 2026, alleging that the Respondents had violated the Shipping Act of 1984, as amended, 46 U.S.C. Sections 40101 *et seq.*, by assessing detention charges during periods when Complainant claimed to be unable to retrieve or return specified containers, failing to consider requests for waiver or dispute resolution, and other alleged acts or omissions.

II. AMICABLE RESOLUTION AND SETTLEMENT OF THE DISPUTE

The Parties have been engaged in settlement negotiations since August 13, 2026. The Parties have amicably resolved this dispute through the negotiation and execution of a Settlement Agreement on August 27, 2026. The Settlement Agreement reflects a mutually agreed resolution of the matter and does not identify, name, or designate any Party as liable for any claim asserted in the Complaint. Each Respondent and India Connection consent to the relief sought herein as evidenced by their execution of the Settlement Agreement which requires India Connection to take all actions necessary to dismiss the proceeding with prejudice. *See Exhibit A.* Following the execution of the Settlement Agreement, The India Connection pursued what it believed to be the procedurally appropriate means of dismissing the proceeding.

On August 31, 2026, Complainant filed a Stipulation of Dismissal Pursuant to 46 C.F.R. § 502.72(a)(2); and, after the Commission's requested clarification on whether dismissal was sought under Rule 72(a)(1) or Commission Rule 72(a)(2), a revised Stipulation on September 9, 2026. Complainant's efforts to dismiss the Complaint were well-meaning attempts to comply with the Commission's procedures. However, as the Presiding Officer discussed in her Order on Voluntary Dismissal, the existence of a Settlement Agreement between the Parties may require the

Complainant to submit a motion to voluntarily dismiss the proceeding pursuant to the procedural requirements of Rule 72(a)(3).

Accordingly, the Parties respectfully submit this joint motion to voluntarily dismiss the proceeding consistent with the collaborative approach taken to resolve this dispute.

III. REQUEST FOR APPROVAL OF CONFIDENTIAL SETTLEMENT AGREEMENT

The Parties believe that the Agreement meets the criteria set by the Federal Maritime Commission for approval of settlement agreements and therefore should be approved.

In assessing settlement agreements, the Commission has established “a strong and consistent policy of ‘encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.’” *Aeneas Exporting LLC v. Carlo Shipping International Inc.*, FMC Dkt. No. 20-11, 2020 WL 5037329, at *1 (FMC ALJ Aug. 24, 2020) (quoting *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (FMC ALJ 2002)). Moreover, “if it is the considered judgment of the parties that whatever benefits might result from vindication of their positions would be outweighed by the costs of continued litigation and if the settlement otherwise complies with law the Commission authorizes the settlement.” *Delhi Petroleum Pty. Ltd. v. US. Atl. & Gulf/Australia – New Zealand Conf. and Columbus Line, Inc.*, FMC Dkt. Nos. 88-2, 88-4, 1988 WL 340657, at *7 (FMC ALJ Aug. 12, 1988).

The Parties are both sophisticated corporate entities and reached the Agreement through robust negotiations, with the Agreement “reflect[ing] careful consideration of the parties of a variety of factors, including the relative strengths of their positions weighed against the risks and costs of continued litigation.” *APM Terminals N. Am., Inc. v. Port Auth. of N.Y. & N.J.*, 31 S.R.R. 623, 636 (FMC 2009) (quoting *Delhi Petroleum Pty. Ltd.*, 1988 WL 340657, at *7). The Agreement does not contravene any law or public policy, and it is neither unjust nor

discriminatory. It does not contemplate any adverse effects on any third parties or the shipping public. The Agreement is a fair and reasonable resolution of the dispute between the Parties and reflects their mutual desire to resolve their issues without the need for costly litigation.

For these reasons, the Parties respectfully request that the Agreement be approved and, on that basis, the verified complaint in this matter be dismissed with prejudice.

IV. REQUEST FOR CONFIDENTIAL TREATMENT AND LEAVE TO FILE UNDER SEAL

The Commission routinely affords confidential treatment to settlement agreements under 46 C.F.R. Section 502.5, given that they “often contain sensitive commercial information that should be protected from public disclosure.” *D.F. Young, Inc. v. NYK Line (North America) Inc.*, FMC Dkt. No. 16-02, 1 F.M.C.2d 135, 137 (FMC May 22, 2018). Accordingly, “[i]f parties wish to keep the terms of their settlement agreements confidential, the Commission, as well as the courts, have honored such requests.” *Marine Transp. Logistics, Inc., v. CMA-CGM (Am.) LLC*, FMC Dkt. No. 18-07, 2 F.M.C.2d 31, 33 (FMC ALJ Feb. 18, 2020) (quoting *Al Kogan v. World Express Shipping, Transp. & Forwarding Servs., Inc.*, FMC Dkt. No. 00-04, 29 S.R.R. 68, 70 n.7 (FMC ALJ Dec. 14, 2000)).

Confidentiality is an essential term of the Agreement. The Agreement is the result of confidential negotiations between the Parties over sensitive commercial information. All Parties also have a strong interest in ensuring that their settlements are confidential to prevent any sensitive commercial terms from being disclosed to third parties or the public at large. The Parties therefore jointly and respectfully request leave to file the Agreement under seal for review and approval, and that the Agreement thereafter continue to be afforded confidential treatment by the Commission.

V. CONCLUSION

The Agreement comprehensively addresses the issues relating to the above-referenced proceeding and meets the Commission's well-established criteria for approval of agreements settling administrative litigation. Accordingly, for the reasons set forth herein, the Parties respectfully request approval of their Agreement. The Parties also respectfully request that the Commission designate the Agreement as confidential and keep it under seal.

Dated: September 22, 2026

Respectfully and jointly submitted,

THE INDIA CONNECTION LLC

/s/ Sanjeev Khokha
The India Connection, LLC
Sanjeev Khokha,
Authorized Representative/
Director of Operations (Asia)
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Complainant (appearing pro se)

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*Counsel for Respondent CMA CGM
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CERTIFICATE OF SERVICE

I certify that on the 22nd day of September 2026, a true copy of the foregoing was served by electronic mail on all parties of record as follows:

Curtesy Copies to Respondents:

Aaryay Gupta, Director
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CONFIDENTIAL

EXHIBIT A:
SETTLEMENT AGREEMENT